

VCU318850 Valles, Maria vs. Entabi, Fateh Dr.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-28

Motion: Plaintiff's Motion to Strike / Tax Costs

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Re: Valles, Maria vs. Entabi, Fateh Dr.

Case No.: VCU318850

Date: September 28, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff's Motion to Strike / Tax Costs

Tentative Ruling: To grant the motion in part and award costs in the amount of \$56,430.72.

Facts

This medical malpractice matter came on for trial May 4, 2026.

On May 6, 2026, after presentation of Plaintiff's case in chief, Defendant moved for a directed verdict.

On May 6, 2026, the Court granted the motion for directed verdict, dismissed the case and stated "judgment shall be entered in favor of Defendant."

On May 11, 2026, the clerk of this Court sent notice of the Court's ruling on the motion for directed verdict.

On June 10, 2026, Defendant filed a memorandum of costs, seeking \$98,036.72 in costs, including \$82,212.50 in expert fees.

On June 30, 2026, Defendant submitted, and this Court signed, the judgment on directed verdict in favor of Plaintiff.

On July 28, 2026, Defendant sent notice of entry of judgment.

On July 29, 2026, Plaintiff filed this motion to tax costs. Plaintiff argues first the memorandum of costs was untimely served thirty (30) days following the clerk's notice of the ruling on the directed verdict motion. Alternatively, Plaintiff argues that the section 998 offer for both sides to "walk away" was a token offer and therefore Defendant should not recover expert fees. Finally, Plaintiff argues that the expert fees sought improperly include pre-offer expert fees and, in their entirety, are unreasonably, unnecessary and unsupported.

In opposition, Defendant argues that the memorandum of costs was timely filed, despite being prior to the entry and notice of judgment and that, instead, Plaintiff's motion to tax or strike costs was untimely. Alternatively, Defendant argues that the section 998 offer for a waiver of costs was not a token offer. Further, Defendant accepts that all of the fees of Defendant's expert Dr. Bhojrul (totaling \$6,750) and \$5,850 of the fees of Dr. Dubrow (for a total of \$12,600) listed in the memorandum of costs were incurred prior to April 6, 2026 and should not have been claimed. However, Defendant argues, the remaining excerpt costs are post-offer fees incurred and are recoverable.

Authority and Analysis

Timing re: Filing of Memorandum of Costs

California Rule of Court, rule 3.1700 entitled "Prejudgment costs" stated, in relevant part, the following:

"(a) Claiming costs

(1) Trial costs A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case."

Here, the memorandum was filed June 10, 2026, prior to service of the notice of entry of dismissal by the clerk, prior to service of the judgment and prior to 180 days after entry of judgment.

"A prematurely filed memorandum of costs is 'a mere irregularity at best' that does not constitute reversible error absent a showing of prejudice' and is treated 'as being timely filed.' [Citation.]" (Lowry v. Port San Luis Harbor District (2020) 56 Cal.App.5th 211, 222.)

However, there is authority that a prematurely filed memorandum of costs, while timely, should be treated as filed and served the day after the notice of entry of judgment is served. (Brown v. West Covins Toyota (1994) 26 Cal. App. 4th 555, 560 disapproved on other grounds "[W]e deem the premature memorandum of costs to have been served and filed ... the day after notice of entry of judgment was served, and the earliest date for service and filing of cost bill [under California Rules of Court, Rule 3.1700(a)(1)].")

As such, the Court will deem the memorandum timely filed as of July 29, 2026 pursuant to the above.

Timing re: Filing of Motion to Strike or Tax Costs

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4)." Cal. Rules of Court, Rule 3.1700(b)(1).

Here, the memorandum was filed and served June 10, 2026.

Notice of entry of judgment occurred July 28, 2026.

The motion to strike was filed July 29, 2026.

As noted above, the Court has deemed the memorandum of costs filed July 29, 2026 and therefore this motion to strike is timely filed July 29, 2026.

Striking Costs

The right to recover costs is entirely statutory, with the measure of the statute as the measure of the right. (*Moss v. Underwriters' Report. Inc.* (1938) 12 Cal. 2d 266, 274; *Posey v. State of California* (1986) 180 Cal. App. 3d 836, 852. The statutes permitting costs are strictly construed. (*Sequoia Vacuum Systems v. Stranskv* (1964) 229 Cal. App. 2d 281, 289.) "[T]he verified Memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred" and the burden rests with the party seeking to tax costs to show they were improper, unreasonable or unnecessary. (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 855-856.)

The starting point is the verified Memorandum of Costs and Code of Civil Procedure section 1033.5. Allowable costs under section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount).

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.*) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (*Id.*)

A party contesting costs must state why the contested item is objectionable. (California Rules of Court Rule 3.1700(b)(2)). Factual recitals rather than mere conclusions are required. Conclusory allegations that the item was "neither necessary nor reasonable" do not satisfy the objecting party's burden. (*County of Ker v. Ginn* (1983) 146 Cal App.3d 1107, 1113-1114; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.)

Here, the only item of costs objected to is the expert costs in the amount of \$69,609.50, having accepted Defendant's reduction of the costs by \$12,600 as incurred prior to the section 998 offer and the \$3.00 scrivener's error.

Section 998 Offer

If a plaintiff rejects a defendant's settlement offer under Code of Civil Procedure section 998 and the plaintiff fails to obtain a more favorable judgment, the plaintiff may not recover his post-offer costs and must pay the defendant's costs from the time of the offer. (Code Civ. Proc., § 998, subd. (c)(1).)

Here, Plaintiff challenges the sufficiency of the section 998 offer served April 6, 2026 offering to waive Defendant's costs in exchange for dismissal. Plaintiff argues this was a token offer and therefore cannot shift the expert costs to Plaintiff.

Validity of 998 Offer

"To be valid, an offer under Code of Civil Procedure section 998 may include nonmonetary terms and conditions, but it must be unconditional. The offer must be sufficiently specific to allow the recipient to meaningfully evaluate it and make a reasoned decision whether to accept it. (Citation.) Further, the offeree must be able to clearly evaluate the worth of the offer." (Duff v. Jaguar Land Rover North America, LLC (2022) 74 Cal.App.5th 491, 499.)

There appears to be little discussion as to the validity of the offer. However, the Court finds the exchange of dismissal for waiver of costs sufficiently unconditional, specific and permitted Plaintiff to make a reasoned decision as to its validity.

Token Offer

An offer under section 998, in addition to being valid, must be made in good faith. (Licudine v. Cedars-Sinai Medical Center (2019) 30 Cal.App.5th 918, 924.) In order to be in good faith, the offer must carry "some reasonable prospect of acceptance." (Id. (citing Regency Outdoor Advertising, Inc. v. City of Los Angeles (2006) 39 Cal.4th 507, 531).) Where a defendant obtains a judgment more favorable than its section 998 settlement offer, that results in a presumption that the offer was reasonable. (Melendrez v. Ameron Internat. Corp. (2015) 240 Cal.App.4th 632, 648.)

In evaluating the reasonableness of the offer, the court considers not just the sum that the plaintiff sought, but also the likelihood that the plaintiff would prevail at trial. (Id. at 649.) Even a "token" offer may be reasonable when a defendant has concluded that he has a very significant likelihood of prevailing at trial. (Bates v. Presbyterian Intercommunity Hospital, Inc. (2012) 204 Cal.App.4th 210, 220.)

Whether a section 998 offer has a reasonable prospect of acceptance requires evaluation of (1) whether the offer was within the range of reasonably possible results at trial considering all the information the offeror knew or should have known; and (2) whether the offeror knew the offeree had sufficient information to assess the reasonableness of the offer, based on what the offeree knew or should have known. (Id. at 924-925.)

"These two considerations assess whether the offeror knew that the 998 offer was reasonable, first, from the offeror's perspective and, second, from the offeree's perspective." (Id.) Whether a section 998 offer has a reasonable prospect of acceptance is a function of two considerations, both to be evaluated in light of the circumstances "at the time of the offer" and "not by virtue of hindsight." (Id. (citing Burch v. Children's Hospital of Orange County Thrift Stores, Inc. (2003) 109 Cal.App.4th 537, 548).)

Here, the standard requires the Court to evaluate whether the 998 offers were within the range of reasonably possible results at trial considering the information available to Plaintiff. Reasonableness is generally measured by first "determining whether the offer represents a reasonable prediction of the amount of money, if any, defendant would have to pay plaintiff following a trial," based on "information that was known or reasonably should have been known to the defendant." (Elrod v. Oregon Cummins Diesel, Inc. (1987) 195 Cal.App.3d 692, 699.)

The offer must carry with it some reasonable prospect of acceptance. (People ex rel. Lockyer v. Fremont Gen. Corp. (2001) 89 Cal.App.4th 1260, 1271.) "One having no expectation that his or her offer will be accepted will not be allowed to benefit from a no-risk offer made for the sole purpose of later recovering large expert witness fees." (Id.)

A defendant may make a reasonably low offer, including waiving costs and fees, if they reasonably believe they are fault free and have a significant likelihood of prevailing. That a defense section 998 offer was modest in comparison to the amount the plaintiff sought does not preclude a finding of reasonableness. (Melendrez v. Ameron Internat. Corp. (2015) 240 Cal.App.4th 632, 649; Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) Where a defendant obtains a judgment more favorable than its section 998 settlement offer, that results in a presumption that the offer was reasonable. (Melendrez v. Ameron Internat. Corp. (2015) 240 Cal.App.4th 632, 648.)

Finally, whether a section 998 offer is reasonable and made in good faith is left to "the sound discretion of the trial court." (Bates v. Presbyterian Intercommunity Hospital, Inc. (2012) 204 Cal.App.4th 210, 221.)

Plaintiff argues that as of April 6, 2026, the parties were squarely at issue, the case was supported by competing expert testimony, and trial was roughly a month away. Therefore, Plaintiff argues that the offer "gave Plaintiff nothing" and therefore had no reasonable prospect of acceptance.

Defendant, in response, notes that Defendant's expert had opined, at the time the offer was made, that there was no breach of the standard of care and no causal link between Defendant's acts and the damages. Further, that the deposition of Plaintiff's expert Dr. Romano occurred April 15, 2026 and that Dr. Romano could not say to a reasonable degree of medical probability that any breach any the standard of care by Defendant actually caused the Plaintiff any harm. Plaintiff argues, therefore, the offer was still able to be accepted after this deposition testimony.

The Court notes here that it commonly sees dueling expert opinions as to the standard of care, breach thereof and causation in medical malpractice cases. Expert testimony in professional negligence matters is necessary as a matter of law. However, where Plaintiff's expert cannot opine as to the issue of causation as to Defendant's acts or failures to act, the Court agrees that, in such a case, a plaintiff is unlikely to prevail.

This guides the Court's finding that the offer here was not a token offer and that the waiver of costs (and expert fees) represents a reasonable prediction of the outcome of the case. Moreover, Defendant is presumed to have made a reasonable offer, having prevailed at trial.

The Court agrees that neither Wear v. Calderon (1981) 121 Cal.App.3d 818 nor Elrod, supra, 195 Cal.App.3d 692 preclude such a finding and that both set out the same law applied above.

As such, the Court denies the motion to strike the post-offer expert fees incurred on the basis of a token offer.

Reasonableness, Necessity and Support for Amount of Expert Fees

As noted above, \$69,609.50 of expert fees incurred after April 6, 2026 are at issue.

The Court reviews the invoices for fees incurred after the section 998 offer was served, noting a rate of \$650 per hour and fees for 27 hours record review in preparation of deposition and 33 hours of review in preparation for trial. Further, there is a \$20,000 flat rate charge for Dr. Dubrow's deposition and \$8,500 for a travel fee. Finally, the Court notes telephonic conversations with counsel.

The Court will reduce the 60 hours incurred for review in preparation for the deposition and trial to 40 hours. The Court will also reduce the flat rate charge of \$20,000 to \$10,000 and the travel fee to \$4,000.

As such, the Court will award \$40,609.50 in expert fees.

The Court notes here that the majority of these costs are expert fees awarded pursuant to section 998. LAOSD Asbestos Cases (2018) 25 Cal.App.5th 1116, 1124 notes that:

“...‘section 998 gives the trial court discretion to consider a party’s ability to pay costs, when considering costs recoverable under that section.’ [citations omitted] However, the appellate court disagreed that a court had the same discretion under section 1032: ‘There is no language in section 998 which would transfer the discretion of that section to a motion to tax costs recoverable by the prevailing party under sections 1032 and 1033.5, and unrelated to section 998.’ [citation omitted].”

Here, however, Plaintiff has not made any argument or provided evidence through declaration of an inability to pay.

Therefore, the Court awards costs in the amount of \$56,430.72 as follows:

Cost

Amount Requested

Amount Awarded

1. Filing and Motion Fees

\$531.50

\$531.50

2. Jury Fees

\$264.62

\$264.62

4. Deposition costs

\$8,046.56

\$8,046.56

5. Service of Process

\$85.00

\$85.00

11. Court reporter fees

\$6,359.00

\$6,359.00

12. Models, enlargements, and photocopies of exhibits

\$534.54

\$534.54

16. Other

\$82,215.50

\$40,609.50

Total

\$98,036.72

\$56,430.72

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.